

Since the *Screws* and *Williams* decisions, Congress has had several pieces of civil rights legislation before it. In 1956 one bill reached the floor of the House. This measure had at least one provision in it penalizing actions taken "under color of law or otherwise."³³ A vigorous minority report was filed attacking, *inter alia*, the words "or otherwise."³⁴ But not a word of criticism of the phrase "under color of" state law as previously construed by the Court is to be found in that report.

Section 131 (c) of the Act of September 9, 1957, 71 Stat. 634, 637, amended 42 U. S. C. § 1971 by adding a new subsection which provides that no person "whether acting under color of law or otherwise" shall intimidate any other person in voting as he chooses for federal officials. A vigorous minority report was filed³⁵ attacking the wide scope of the new subsection by reason of the words "or otherwise." It was said in that minority report that those words went far beyond what this Court had construed "under color of law" to mean.³⁶ But there was not a word of criticism directed to the prior construction given by this Court to the words "under color of" law.

The Act of May 6, 1960, 74 Stat. 86, uses "under color of" law in two contexts, once when § 306 defines "officer of election" and next when § 601 (a) gives a judicial remedy on behalf of a qualified voter denied the opportunity to register. Once again there was a Committee report containing minority views.³⁷ Once again no one challenged the scope given by our prior decisions to the phrase "under color of" law.

³³ H. R. Rep. No. 2187, 84th Cong., 2d Sess., p. 16.

³⁴ *Id.*, p. 26.

³⁵ H. R. Rep. No. 291, 85th Cong., 1st Sess., pp. 24-60.

³⁶ *Id.*, pp. 57-58.

³⁷ H. R. Rep. No. 956, 86th Cong., 1st Sess., pp. 32-42.